

Mustari Begam v. State of U.P.

Allahabad High Court · Division Bench · 5 March 2025 · 2025:AHC:31779-DB · WRIT - C No. 6463 of 2025 · **Writ disposed; authority directed to decide pending clause 6.5 objection within six weeks; disconnection stayed till then.**

HEADNOTE

Where a consumer's objection under clause 6.5 of the Electricity Supply Code, 2005 remains undecided, the High Court will not examine the merits but will direct the competent authority to decide the objection expeditiously, and will restrain disconnection of supply pending that decision.

FACTUAL SUMMARY

Mustari Begam filed a writ petition in the Allahabad High Court alleging that she had raised an objection under clause 6.5 of the Electricity Supply Code, 2005 which the concerned authority had not decided. Counsel for the petitioner and for respondent nos. 2 and 3 were heard. The order discloses no further facts of the billing or supply dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending 6.5 objection — direction to decide; stay of disconnection

HOLDING

Where an objection under clause 6.5 of the Electricity Supply Code, 2005 has not been decided, the authority is directed to decide it expeditiously, preferably within six weeks, and the consumer's electricity connection is not to be disconnected until that objection is decided. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 OBJECTION

Left to the concerned authority; the Court did not examine the billing or supply dispute. ¶ 2-3